

HOUSE BILL 1379

By Harris

AN ACT to amend Tennessee Code Annotated, Title 45
and Title 47, relative to the use of fake checks for
advertising.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 45, Chapter 1, Part 1, is amended by
adding the following as a new section:

45-1-131.

(a) A person shall not send by mail a fake check or an image of a fake check for
the purpose of advertising. It is not an exception to this subsection (a) if the fake check
or the image of the fake check states that the check is not real, voided, or may be used
as a method to accept an expiring offer from the advertisement.

(b) The department of financial institutions shall enforce this section. The
department shall promulgate rules to effectuate this section. The rules must be
promulgated in accordance with the Uniform Administrative Procedures Act, compiled in
title 4, chapter 5.

(c) In addition to the remedies and penalties provided under this part, a violation
of this section constitutes a violation of the Tennessee Consumer Protection Act of 1977,
compiled in title 47, chapter 18, part 1. A violation of this section constitutes an unfair or
deceptive act or practice affecting trade or commerce and is subject to the penalties and
remedies as provided in the Tennessee Consumer Protection Act of 1977.

SECTION 2. Tennessee Code Annotated, Section 47-18-104(b), is amended by adding
the following as a new subdivision:

() Violating § 45-1-131;

SECTION 3. For the purpose of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2025, the public welfare requiring it, and applies to conduct occurring on or after that date.